

Calendar Line 6

Case Name: Brandon Spitzack v. Ford Motor Company et al.

Case No.: 25CV469470

This is an action under the Song-Beverly Consumer Warranty Act brought by plaintiff Brandon Spitzack (Plaintiff) against defendants Ford Motor Company (Ford), Future Ford Lincoln of Concord, and Doe defendants. It is based on Plaintiff's purchase of a 2024 Ford Ranger in June 2024. As part of this purchase, Plaintiff entered into a warranty contract with Ford.

The original and still operative complaint, filed in June 2025, alleges six causes of action: (1) violation of Civil Code section 1793.2, subdivision (d) (against Ford only); (2) violation of Civil Code section 1793.2, subdivision (b) (against Ford only); (3) violation of Civil Code section 1793.2, subdivision (a)(3) (against Ford only); (4) b of the implied warranty of merchantability (against Ford only); (5) negligent repair (against Future Ford Lincoln of Concord only); and (6) fraudulent inducement—concealment (against Ford only). A copy of the warranty contract is attached to the complaint as exhibit A. The complaint alleges that the subject vehicle suffered from a transmission defect that Ford was aware of but concealed from consumers like Plaintiff. Plaintiff would not have purchased the subject vehicle had the defect been disclosed. Both named defendants answered the complaint in October 2025.

At issue is Ford's motion for judgment on the pleadings. Plaintiff filed a late opposition to this motion without leave of court. "A trial court has broad discretion to under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission." (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.) The court has considered the late filing. Plaintiff's counsel is admonished to comply with applicable deadlines in future filings.

LEGAL STANDARD FOR MOTIONS FOR JUDGMENT ON THE PLEADINGS

A motion for judgment on the pleadings "is equivalent to a belated general demurrer." (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired. Except as provided by statute (Code Civ. Proc., § 438), the rules governing demurrers apply. As with a demurrer, in ruling on a motion for judgment on the pleadings the court accepts as true all properly pleaded material factual allegations. The court does not accept as true contentions, deductions, or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Extrinsic evidence cannot be considered. That includes declarations. The court has considered the declaration from Ford's counsel only to the extent it discusses the meet and confer efforts required by statute. The court has not considered the attached exhibit. The court has also not considered the declaration of Plaintiff's counsel submitted with the late opposition.

DISCUSSION

Ford failed to adequately meet and confer before bringing this motion. Code of Civil Procedure section 439, subdivision (a) states that, before bringing a motion for judgment on the pleadings, the moving party shall meet and confer "in person, by telephone, or by video conference" with the other side. Sending a letter does not comply with the statute. But

because Code of Civil Procedure section 439, subdivision (a)(4) states that a failure to meet and confer is not itself a basis for denying a motion for judgment on the pleadings, the court will consider it on its merits.

Ford's notice of motion targets the sixth cause of action solely on the ground that "Plaintiff failed to allege sufficient material factual allegations to support a claim for fraud." (Notice of Motion and Motion at pp. 1:28-2:1.) In its supporting memorandum, Ford attempts to make other, unsupported, arguments that were not raised in the notice of motion, such as that sixth cause of action is uncertain and is barred by the statute of limitations. Those unsupported arguments are forfeited. (*Kim v. Sumitomo Bank* (1993) 17 Cal.App.4th 974, 979 [court need not consider point unsupported by legal authority]; see also *Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 52 ["We are not required to examine undeveloped claims or to supply arguments for the litigants"].) Ford's supporting memorandum also lacks the table of contents and table of authorities required by California Rules of Court, rule 3.1113(f).

The sixth cause of action alleges fraudulent inducement of the vehicle purchase through concealment. "The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if the plaintiff had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage." (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348 (*Burch*), citing *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311 (*Bigler-Engler*).) "With respect to concealment, there are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. The latter three circumstances presuppose the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. This relationship has been described as a transaction, such as that between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement." (*Id.* at pp. 349-350, internal quotations and citations omitted.)

Ford contends that the sixth cause of action is not alleged with sufficient particularity. Each element in a fraud cause of action must generally be pleaded with particularity. (*Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.) But in the case of fraud by concealment or omission, courts require less particularity because "[h]ow does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?" (*Alfaro v. Community Housing Improvement System & Planning Ass'n, Inc.* (2009) 171 Cal.App.4th 1356, 1384 (*Alfaro*).) Less specificity is required when it appears from the nature of the allegations that the defendant necessarily possesses full information concerning the facts of the controversy. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217 (*Committee*), superseded by statute on other grounds as stated in *Californians for Disability Rights v. Mervyn's, LLC* (2006) 39 Cal.4th 223, 227.)

The complaint alleges that Ford manufactures, distributes, markets, and sells motor vehicles in Santa Clara County, California. (Complaint, ¶ 4.) It alleges Plaintiff entered into a

warranty contract with Ford as part of purchasing the vehicle; that Ford knew of the transmission defect prior to Plaintiff acquiring the vehicle and actively concealed it; that Plaintiff would not have purchased the vehicle had he known of the defect; and that Plaintiff has suffered damages in part because the vehicle is now worthless. (*Id.* at ¶¶ 7, 14, 22, 24, 34 and 35.) The sixth cause of action incorporates those allegations by reference and makes similar allegations. (*Id.* at ¶¶ 63-78.) At least one appellate court has found similar allegations sufficient to support a cause of action for fraudulent concealment. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844.) Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal. Rules of Court, rule 8.1115(e)(2)). *Dhital* is persuasive. All elements of the sixth cause of action are pleaded with adequate specificity.

Ford’s argument that the complaint fails to allege a fiduciary relationship is unpersuasive. No fiduciary relationship is required to support the sixth cause of action. The complaint alleges a direct contractual relationship between Plaintiff and Ford via the warranty agreement attached as exhibit A. “[A]ny kind of contractual relationship” is sufficient to impose a duty to disclose. (*Burch, supra*, 34 Cal.App.5th at p. 350.) Even if the warranty contract was not enough to give rise to a duty to disclose, in California a “vendor has a duty to disclose material facts not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold.” (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 859.) As a vehicle manufacturer and distributor, Ford had reason to know that its vehicles are likely to be sold by dealerships to consumers. The duty to disclose as a vendor is therefore triggered.

Finally, Ford argues the sixth cause of action is barred by the economic loss rule. But “the economic loss rule does not apply to limit recovery for intentional tort claims like fraud.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.) More specifically, the economic loss rule does not apply to fraudulent inducement of a contract. (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 552 (*Erlich*); *Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 989-990 (*Robinson*); *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 328-329 [“The analysis [in *Robinson*] suggested that fraud *itself* is immune from application of the economic loss rule because fraud is particularly blameworthy and therefore unlike both contract causes of action *and* products liability causes of action.”], internal citation omitted.) *Rattagan* concerned fraud alleged to have occurred during a contractual relationship, not fraud in the inducement of a purchase. (*Rattagan*, at p. 41, fn. 12 [“*Rattagan*’s tort claims are, of course, based on alleged conduct committed *during* the contractual relationship but purportedly outside the parties’ chosen rights and obligations.”].) The *Rattagan* court made clear it was not addressing fraudulent inducement of contract. Where fraudulent inducement of a contract is alleged, the fraud occurs prior to the formation of the contract and is separate from the contract.

CONCLUSION

Ford’s motion for judgment on the pleadings as to the complaint’s sixth cause of action is denied.

The court will prepare the order.

Calendar Line 8

Case Name: Eric Wiedemann v. Juggernaut Consulting, LLC et al.

Case No.: 26CV486559

This is an action brought by self-represented plaintiff Eric Wiedemann (Plaintiff) against defendants Juggernaut Consulting, LLC (Juggernaut), April Mora, Gavin Mora, and Doe defendants. The original and still operative complaint alleges that defendants breached a Business Purchase Agreement for the sale of Red Light Day Spa, a business located in Los Gatos, California. The complaint alleges five causes of action: (1) breach of contract; (2) accounting; (3) money had and received; (4) declaratory relief; and (5) claim and delivery. There are no exhibits attached to the complaint. All five causes of action are brought against all defendants. Juggernaut is the only defendant represented by counsel.

At issue is Plaintiff's motion to strike certain filings. Defendant Juggernaut filed a timely opposition. Individual defendants April Mora and Gavin Mora filed untimely oppositions, which the court has not considered. The parties are admonished to comply with the Code of Civil Procedure and California Rules of Court regarding filing deadlines and document formatting. (Code Civ. Proc., § 1005, subd. (b) [filing deadlines for motion paperwork].) Among other things, filings must comply with the line-spacing requirements of California Rules of Court, rule 2.108—single-spacing is not permitted. The length of supporting memoranda, oppositions, and replies is governed by California Rules of Court, rule 3.1113. Plaintiff's 79-page reply brief substantially exceeds the 10-page limit for replies. (Cal. Rules of Court, rule 3.1113(d).) The court has considered only the first 10 pages of the reply. The court will not consider arguments raised in future filings if they do not comply with the Code of Civil Procedure and California Rules of Court.

LEGAL STANDARD FOR MOTIONS TO STRIKE

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); unspecified statutory references are to the Code of Civil Procedure; *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the challenged pleading as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

The court cannot consider extrinsic evidence in ruling on a motion to strike. That includes declarations. The court has considered Plaintiff's declaration submitted with the motion only to the extent it discusses the meet and confer efforts required by statute. While the declaration and other moving papers refer to or list "exhibits," none of the documents were submitted with the motion. Those exhibits would constitute extrinsic evidence and would not have been considered even if they had been submitted with the initial motion. The court has also not considered Plaintiff's supplemental declaration included with the reply brief, or any of the attached exhibits.

California Rules of Court, rule 3.1322(a) requires that “[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322(a).)

Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.) The court has not considered any arguments made for the first time in Plaintiff’s reply, such as his attempt to apply the sham pleading doctrine. The court has not considered any of the documents attached to the reply brief as exhibits. (*Golden Door Properties, LLC v. Superior Court* (2020) 53 Cal.App.5th 733, 774 [new evidence is not permitted in reply papers unless it is “strictly responsive” to arguments made for the first time in the opposition].)

DISCUSSION

Plaintiff seeks to strike “the February 27, 2026 defense filing and the March 19, 2026 filed CIV-141 packets for April Mora and Gavin Mora, in whole, or alternatively striking all unrelated and contradictory portions in either or both submission cycles, or as to either filing as the Court finds appropriate.” (Notice of Motion and Motion at p. 2:5-8.) The stated authority for the motion to strike is Code of Civil Procedure section 436. (*Id.* at p. 6:29-30.)

The only “defense filings” on February 27 were an opposition (with attachments) to an ex parte application made by Plaintiff, and a proof of service of that opposition. That opposition was filed by April Mora “on the basis of defective service.” The only “defense filings” on March 19 were two declarations in support of an automatic extension of time for a demurrer or motion to strike, filed by April Mora and Gavin Mora, respectively, and proofs of service for those declarations.

A party “within the time to respond *to a pleading*, may serve and file a notice of motion to strike the whole or any part thereof.” (§ 435, subd. (b)(1), italics added.) Section 435, subdivision (a) defines “pleading”: “As used in this section: (1) The term ‘complaint’ includes a cross-complaint. (2) The term ‘pleading’ means a demurrer, answer, complaint or cross-complaint.” “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms that it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (§ 436.)

None of the documents filed on February 27 or March 19 are pleadings. They are not complaints, cross-complaints, answers, or demurrers. They are not the proper target of a motion to strike. Self-represented parties “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) The motion to strike must be denied.

Plaintiff’s motion to strike also requests other relief related to other documents designated as “exhibits” by Plaintiff, which were not submitted with the motion. (Notice of Motion and Motion at pp. 8:18-10:8.) That requested relief is denied. (See *Allen v. City of*

Sacramento (2015) 234 Cal.App.4th 41, 52 [“We are not required to examine undeveloped claims or to supply arguments for the litigants”].) Plaintiff has not demonstrated any basis for the relief requested.

For example, Plaintiff requests sanctions under Code of Civil Procedure sections 128.5 and 177.5. Sanctions under section 128.5 are typically awarded for frivolous actions and tactics, defined as including but not limited to “the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading.” (Code Civ. Proc. § 128.5(b)(1).) Even assuming that the February 2026 and March 2026 filings include false or incorrect information, that would not support sanctions under section 128.5. Sanctions under section 177.5 can be imposed for violation of a lawful court order without good cause or substantial justification. (Code Civ. Proc. § 177.5.) Plaintiff has failed to show how the challenged filings violate any court order.

The motion to strike and the reply also reference Penal Code section 118. To enforce a Penal Code section in civil court, there must be a private tort right of action to enforce the specific Penal Code section. (*Animal Legal Defense Fund v. Mendes* (2008) 160 Cal.App.4th 136, 145; see also *Vasquez v. SOLO I Kustoms, Inc.* (2018) 27 Cal.App.5th 84, 90-91 [“The Legislature’s intention to create a private cause of action must be expressly stated or strongly implied in the statutory language or legislative history.”].) Penal Code section 118 does not contain any such language, and Plaintiff provides no authority for the proposition that the Penal Code section is enforceable in a civil lawsuit between private parties.

Plaintiff has also filed a “request for judicial referral and charging action,” based on the same February 27, 2026, and March 19, 2026, filings. It is generally duplicative of the motion to strike, and is denied for the same reasons the motion to strike is denied.

CONCLUSION

Plaintiff’s motion to strike “the February 27, 2026 defense filing and the March 19, 2026 filed CIV-141 packets for April Mora and Gavin Mora, in whole, or alternatively striking all unrelated and contradictory portions in either or both submission cycles, or as to either filing as the Court finds appropriate,” is denied. Plaintiff’s request for sanctions and other relief based on those same filings is denied.

The court will prepare the order.

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